after the date on which the payment obligation is due.

§ 62.12 Under what circumstances can the service or payment obligation be canceled, waived, or suspended?

(a) Any obligation of a Scholarship Program participant for service or payment will be canceled upon the death of the participant.

(b)(1) A Scholarship Program participant may seek a waiver or suspension of the service or payment obligations incurred under this part by written request to the Secretary setting forth the bases, circumstances, and causes which support the requested action. The Secretary may approve a request for a suspension for a period of 1 year. A renewal of this suspension may also be granted.

(2) The Secretary may waive or suspend any service or payment obligation incurred by a participant whenever compliance by the participant (i) is impossible, or (ii) would involve extreme hardship to the participant and if enforcement of the service or payment obligation would be against equity and good conscience.

(c) For the purpose of paragraph (b)(2)(i) of this section, compliance by a participant with a service or payment obligation will be deemed impossible if the Secretary determines, on the basis of information and documentation as may be required, that the participant suffers from a physical or mental disability that results in the permanent inability of the participant to perform the service or other activities which would be necessary to comply with the obligation.

(d) For the purpose of paragraph (b)(2)(ii) of this section, in determining whether to waive or suspend any or all of the service or payment obligations of a participant as imposing an undue hardship and being against equity and good conscience, the Secretary, on the basis of information and documentation as may be required, will take into consideration the following:

(1) the participant's present financial resources and obligatons;

(2) the participant's estimated future financial resources and obligations; and

(3) the extent to which the participant has problems of a personal nature, such as physical or mental disability, terminal illness in the immediate family, which so intrude on the participant's present and future ability to perform as to raise a presumption that the individual will be unable to perform the obligation incurred.

§ 62.13 What are the limitations on the receipt of concurrent benefits?

Under section 741(f) or 836(h) of the Act, the Secretary may agree to repay a portion of an individual's educational loans in return for the individual's agreement to practice his or her profession in an area in need of health manpower. However, a Scholarship Program participant may not enter into an agreement with the Secretary under section 741(f) or 836(h) of the Act, until either (1) the participant has completed the service obligation under the Scholarship Program, (2) the Secretary has recovered from the participant an amount determined in accordance with § 62.10, or (3) any service or payment obligation has been waived in accordance with § 62.12. In no case shall a scholarship received under this part be considered an educational loan for the purposes of section 741(f) or 836(h) of the Act.

§ 62.14 What are the special provisions relating to recipients of awards under the PH/NHSC Scholarship Training Program and who will also receive awards under the Scholarship Program?

(a) Except as provided in paragraph (b) of this section, if a participant has previously received an award under the PH/NHSC Scholarship Training Program and also receives an award under the Scholarship Program, the terms and conditions of this part will apply to the participant's entire obligation incurred under both the PH/NHSC Scholarship Training Program and the Scholarship Program.

(b) If a participant has previously received an award under the PH/NHSC Scholarship Training Program and also receives an award under the Scholarship Program, the following conditions apply:

(1) *Period of obligated service—carry over.* The period of obligated service owed by the participant is equal to the total number of school years for which scholarship support was awarded under both the PH/NHSC Scholarship Training Program and the Scholarship Program without regard to each Program's minimum support requirement under 42 CFR § 62.7(a) (1976) as adopted on May 22, 1974 (see 39 FR 17962), and under § 62.8(c) of this part.

(2) *Creditability for internship and residency training.* (i) If a Scholarship Program participant received a scholarship under the PH/NHSC Scholarship Training Program for any school year beginning before October 12, 1976, the participant will receive credit toward satisfying the periods of obligated service incurred under the PH/NHSC Scholarship Training Program and under § 62.8 of this part for any periods of internship or residency training served in a Service or National Health Service Corps facility.

(ii) If a Scholarship Program participant received a scholarship for the first time during the 1977-78 school year under the PH/NHSC Scholarship Training Program, the participant will only receive 1 year of credit toward satisfying the period of obligated service incurred under the PH/NHSC Scholarship Training Program for internship or residency training served in a Service or National Health Service Corps facility.

(3) *Default penalties.* The PH/NHSC Scholarship Training Program default penalty will apply to a participant who fails to begin or complete the active duty service obligation incurred under that Program, and the § 62.10 default penalties will apply to a participant who fails to begin or complete the service obligation incurred under § 62.8 of this part. For purposes of determining which default penalty to apply when an individual who has received a scholarship award under both the PH/NHSC Scholarship Training Program and the Scholarship Program fails to begin or complete his service obligation, the service obligations will be deemed to have been served in the order in which they were incurred.

[FR Doc. 78-26976 Filed 9-26-78; 8:45 am]

[4310-84]

Title 43—Public Lands: Interior

CHAPTER II—BUREAU OF LAND MANAGEMENT, DEPARTMENT OF THE INTERIOR

APPENDIX—PUBLIC LAND ORDERS

[Public Land Order 5647]

[CA-1]

CALIFORNIA

Partial Revocation of Executive Order No. 6009

AGENCY: Bureau of Land Management (Interior).

ACTION: Final rule.

Summary: This order partially revokes an Executive order which reserved public lands for navigation purposes on San Nicholas Island for use by the Coast Guard, Department of Commerce. The lands will continue to remain withdrawn under the administrative jurisdiction of the Navy Department.

EFFECTIVE DATE: September 27, 1978.

FOR FURTHER INFORMATION CONTACT:

Keith Corrigall, 202-343-8731.

By virtue of the authority contained in section 204 of the Act of October 21, 1976, 90 Stat. 2751; 43 U.S.C. 1714, it is ordered as follows:

1. Executive Order No. 6009 of January 31, 1933, which reserved public lands for use of the Coast Guard, Department of Commerce, for lighthouse purposes, is hereby revoked so far as it affects the following described lands:

SAN BERNARDINO MERIDIAN

Four plots of approximately 40 acres each and access thereto reserved for lighthouse purposes on San Nicholas Island, Calif., as shown on topographic sheet number 1523 in the archives of the U.S. Coast and Geodetic Survey. No metes and bounds description is available.

2. The revocation made by this order does not alter the jurisdiction of the Navy Department over the lands excepted in paragraph 1 above for naval purposes as provided for by Executive Order No. 6009 of January 31, 1933.

GUY R. MARTIN,
Assistant Secretary of the Interior.

SEPTEMBER 20, 1978.

[FR Doc. 78-27206 Filed 9-26-78; 8:45 am]

[4110-02]

Title 45—Public Welfare

CHAPTER I—OFFICE OF EDUCATION DEPARTMENT OF HEALTH, EDUCATION, AND WELFARE

PART 116d—GRANTS TO STATE EDUCATIONAL AGENCIES TO MEET THE SPECIAL EDUCATIONAL NEEDS OF MIGRATORY CHILDREN

Availability of Draft Final Regulations

AGENCY: Office of Education, HEW.

ACTION: Notice of availability of draft final regulations.

SUMMARY: Notice is given that a draft of the final regulations to implement the program authorized by section 122 of title I of the Elementary and Secondary Education Act of 1965, as amended (20 U.S.C. 241c-2), is now available to the public. Section 122 provides for grants to State educational agencies to meet the special educational needs of migratory children of migratory agricultural workers or migratory fishers. The draft final regulations now available have not been adopted as official views of either the U.S. Office of Education or the Department of Health, Education, and Welfare, and have no legal effect.

The title I migrant education program is currently governed by interim final regulations published in the FEDERAL REGISTER on July 13, 1977, at 42 FR 36076. The preamble to the interim final regulations stated that interested persons would have opportunities to comment before final regulations were issued. The public responded with a large number of written comments and by participating at eight public hearings. The comment period, as announced in a notice with the interim final regulations (42 FR 36076), ran through August 29, 1977. A separate notice, extending the comment period through December 9, 1977, was published in the FEDERAL REGISTER on October 27, 1977 (42 FR 56608). The draft final regulations have been prepared in response to those public comments and are now available for informational purposes only. There is no extension to the comment period, however.

ADDRESS: Copies of these draft final regulations may be obtained by writing to: Mr. Vidal A. Rivera, Jr., Chief, Migrant Branch, Division of Education for the Disadvantaged, U.S. Office of Education, 400 Maryland Avenue SW., (Room 3642G, ROB-3), Washington, D.C. 20202.

FOR FURTHER INFORMATION CONTACT:

Mr. Vidal A. Rivera, Jr., telephone 202-245-2427.

Dated: September 21, 1978.

ERNEST L. BOYER,
U.S. Commissioner of Education.

(Catalog of Federal Domestic Assistance No. 13.429, Educationally Deprived Children-Migrants.)

[FR DOC. 78-27212 Filed 9-26-78; 8:45 am]

[7035-01]

Title 49—Transportation

CHAPTER X—INTERSTATE COMMERCE COMMISSION

SUBCHAPTER A—GENERAL RULES AND REGULATIONS

[S.O. 1335]

PART 1033—CAR SERVICE

Repair and Retirement of Freight Cars; Order to Show Cause

AGENCY: Interstate Commerce Commission.

ACTION: Emergency order.

SUMMARY: The AAR requested that the date replies were due be extended 30 days from date of publication in the FEDERAL REGISTER. Replies are now due October 13, 1978.

EFFECTIVE DATE: September 20, 1978.

FOR FURTHER INFORMATION CONTACT:

C. C. Robinson, Chief, Utilization and Distribution Branch, Interstate Commerce Commission, Washington, D.C. 20423, telephone 202-275-7840, Telex 89-2742.

SUPPLEMENTARY INFORMATION: The order is printed in full below.

Decided September 20, 1978.

On September 7, 1978, the Commission ordered all railroads owning plain 40-foot boxcars to show cause why they should not be required to repair and restore such cars to service within specified time periods and why certain restrictions should not be placed on the retirement of these cars. Each railroad was requested to furnish detailed information in response to 10 questions propounded by the Commission. Replies are due on September 23, 1978.

On September 13, 1978, the Association of American Railroads, on behalf of its member railroads, requested an extension of the time for the filing of replies for a minimum of thirty (30) days from the date of publication in the FEDERAL REGISTER.

The Association cites, as justification for an extension of time in which to file replies, the time required to assemble the data requested to be furnished and the necessity for certain carriers physically to examine cars set aside for repairs before meaningful replies can be submitted.

It is ordered, The time for filing replies to this order is extended until October 13, 1978.

By the Commission, Chairman O'Neal.

H. G. HOMME, Jr.,
Acting Secretary.

[FR Doc. 78-27217 Filed 9-26-78; 8:45 am]

[7035-01]

[S.O. No. 1339]

PART 1033—CAR SERVICE

Chicago, Milwaukee, St. Paul and Pacific Railroad Co. Authorized To Operate Over Tracks of Union Pacific Railroad Co.

AGENCY: Interstate Commerce Commission.

ACTION: Emergency Order (Service Order No. 1339).

SUMMARY: Due to deteriorated track conditions between Maytown, and Helsing Junction, Wash., the Chicago, Milwaukee, St. Paul and Pacific Railroad Co. is unable to continue service over that line. Service Order No. 1339 authorizes that railroad to operate over tracks of the Union Pacific Railroad Co. between Blakeslee Junction Interlocker, and Helsing Junction, Wash.